

		Moving party to prepare the appropriate order and judgment. Moving party to give notice.
102	Blood v. Wang, 2026-01554903	MOTION TO EXPUNGE LIS PENDENS – DENIED Defendant Huan Wang (“Defendant”) moves for an order expunging the Notice of Pendency of Action (Lis Pendens) recorded against the real property commonly known as 127 Restore, Irvine, California 92618, Assessor’s Parcel No. 930-062-11 (the “Subject Property”), which was recorded in the Official Records of Orange County, California, on March 25, 2026, as Document No. 2026000086003. Defendant also requests attorney fees pursuant to Code of Civil Procedure section 405.38. Plaintiff Michael Blood (“Plaintiff”) opposes the motion. The Court finds that Plaintiff has carried his burden in establishing the probable validity of his real property claim(s) by a preponderance of the evidence and therefore the Motion is DENIED. A lis pendens will be expunged if: (1) the pleading on which the lis pendens is based does not contain a real property claim; or (2) the claimant cannot establish the probable validity of its real property claim(s) by a preponderance of the evidence. (Code Civ. Proc., §§ 405.31, 405.32.) Thus, the party opposing a motion to expunge has the burden of showing both the existence of a real property claim and the probable validity of that claim. (Kirkeby v. Superior Court (2004) 33 Cal.4th 642, 647; Code Civ. Proc., § 405.30.) To overcome the motion to expunge, Plaintiff must establish “it is more likely than not it will obtain a judgment” on its real property claim. (Code Civ. Proc., § 405.) Plaintiff’s showing must be by a preponderance of the evidence. (Code Civ. Proc., § 405.32.) Here, Plaintiff has established the probable validity of his real property claim by a preponderance of the evidence. At the very least, Plaintiff has established the

	probable validity that he is entitled to some relief pursuant to an unjust enrichment theory of restitution. The evidence before the Court establishes that Plaintiff “paid for the entire down payment of \$506,400.00,” “took out a mortgage on the remaining sale amount for One Million One Hundred Eighty-One Thousand Six Hundred Dollars (\$1,181,600.00),” and invested not less than \$24,000 in Subject Property on various renovations, thereby improving the equity value of the property.” (ROA 70, Decl. of Michael Blood, ¶¶ 6-8.) Defendant does not proffer any evidence that refutes this position or evidence that she made a contribution or benefit to Plaintiff or suffered a loss that would make Plaintiff’s financial contribution equitable and lack of title to the property equitable. Plaintiff proffers no agreement between the parties wherein Plaintiff received any consideration for his financial contributions and debt obligations. In fact, the evidence proffered by Defendant only establishes additional grounds that make Plaintiff’s unjust enrichment claim stronger – Defendant is now receiving rental income from the property at issue. Defendant submitted two Grant Deeds and one Quitclaim Deed in support of her motion and requests judicial notice of these documents. Defendant’s Requests for Judicial Notice are GRANTED. The Court notes, however, that while “Courts can take judicial notice of the existence, content and authenticity of public records and other specified documents, [they] do not take judicial notice of the truth of the factual matters asserted in those documents.” (Dominguez v. Bonta (2022) 87 Cal.App.5th 389, 400.) Given this authority, along with the evidence submitted by Plaintiff, the Court finds that the Grant Deeds and Quitclaim Deed cannot be taken at face value and that the totality of the evidence suggests probable validity by a preponderance of the evidence that Defendant has been unjustly enriched with the title to the property at issue and that the title to the property was acquired by Defendant’s undue influence or wrongful act (such as threats “to expose the details of my divorce and rehabilitation stay to my place of employment and to the family law court”,
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		false accusations of sexual assault, and threats regarding the custody of Plaintiff's daughter). Given the above, the Motion to Expunge Lis Pendens is DENIED. Defendant's alternative request for an undertaking is DENIED as this time. (Code Civ. Proc., §§ 405.32 and 405.33.) Plaintiff to give notice.
103	Castellanos v. PHH Mortgage, 2026-01563843	DEMURRER – SUSTAINED WITH 20 DAYS LEAVE TO AMEND Defendants Onity Mortgage Corporation (formerly known as PHH Mortgage Corporation) and Deutsche Bank National Trust Company demur to the complaint filed by Plaintiff Richard Castellanos. Defendants' Request for Judicial Notice is GRANTED, pursuant to Evidence Code section 452, subdivision (h). (Poseidon Development, Inc. v. Woodland Lane States, LLC (2007) 152 Cal.App.4th 1106, 1117.) The First and Second Causes of Action for violations of Civil Code sections 2923.5 and 2924.9 are barred by the statute of limitations. Plaintiff alleges a violation of both of the above provisions, as "plaintiff received no mail or messages from Defendant," either prior to the Notice of Default being recorded or within 5-days thereof. (¶19 and ¶24-¶25 of Complaint.) Both claims are subject to a 3-year statute of limitation, as they are "action[s] upon a liability created by statute, other than a penalty or forfeiture." (Code Civ. Proc., § 338(a).) Defendants assert that both claims are barred, as the relevant Notice of Default was recorded on October 31, 2022 (See ¶13 of Complaint and Exhibit D thereto; See also Exhibit 4 of RJN), more than 3 years before this action was initiated on April 20, 2026.